



CHAPTER 16.

An Act to make provision for disregarding, for the purposes of certain time limits in schemes made under section forty-seven of the Workmen's Compensation Act, 1925, periods of war service or war employment.

[20th December 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) A provision of any scheme (in this section referred to as an "amending scheme") made under section forty-seven of the Workmen's Compensation Act, 1925, as amended by subsequent enactments (which provides for the application of that Act to workmen suffering from any form of pneumoconiosis) that any period of war service or war employment shall be disregarded for the purposes of so much of any scheme made under the said section forty-seven—
- (a) as excludes compensation for an injury where a workman has not been employed in specified employment within a specified time before the date of the injury ;
- (b) as provides for contributions towards compensation from, and the furnishing of information as to, employers who have employed the workman in respect of whom the compensation is payable if he has been employed by them within a specified period before the date of the injury ; or
- (c) as requires medical examination on engagement or transference unless the workman has been employed in specified employment within a specified period,

Power by schemes to make retrospective provision disregarding war service or war employment.
15 & 16 Geo. 5.
c. 84.

may have effect whether the workman was last employed in the specified employment, or employed by the employer in question, or engaged or transferred, before or after the coming into operation of the amending scheme.

(2) Any such provision as aforesaid of an amending scheme may apply either generally or subject to such exceptions as may be specified in the scheme.

(3) In this Act the expression "period of war service or war employment" means, in relation to an amending scheme, any period, between the third day of September, nineteen hundred and thirty-nine and such date as may be specified in the amending scheme, during which a workman has been engaged in any service or employment which such authority as may be specified in the scheme are satisfied the workman would not have undertaken but for a state of war.

Short title and
citation.

2. This Act may be cited as the Workmen's Compensation (Pneumoconiosis) Act, 1945, and this Act and the Workmen's Compensation Acts, 1925 to 1943, may be cited as the Workmen's Compensation Acts, 1925 to 1945.

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